

Articles of Association (AoA)

Articles of Association

of

PRONTO BD LIMITED

1. Definitions

Unless the context otherwise requires:

- “Act” means the Companies Act, 1994 and any amendment thereto.
 - “Board” means the Board of Directors.
 - “Company” means Pronto BD Limited.
-

2. Share Capital

The Company may issue, allot, transfer and manage shares in accordance with the Companies Act and these Articles.

3. Transfer of Shares

Shares may be transferred with approval of the Board, subject to applicable law.

Existing shareholders shall have a right of first refusal unless waived.

4. Directors

Minimum Directors:

2

Maximum Directors:

50

The first directors shall be:

- Md Sharif Mehedi
 - Mst Humayra Tabassum
-

5. Managing Director / CEO

The Board may appoint a Managing Director or Chief Executive Officer and determine his or her powers.

6. Meetings

Board meetings shall be held as required by law.

Meetings may be conducted physically or by electronic communication where legally permissible.

7. Company Seal

The Company may adopt a common seal.

8. Bank Accounts

The Company may maintain bank accounts in Bangladesh and abroad where permitted by law.

9. Contracts

The Company may enter into contracts for:

- software licensing
 - SaaS
 - API services
 - consulting
 - cloud hosting
 - maintenance
 - subscriptions
 - manufacturer integration
 - distributor integration
 - retail services
 - e-commerce
 - technology partnerships
-

10. Data Governance

The Company may collect, process, store and distribute commercial data obtained through lawful agreements.

Ownership and licensing of data shall remain subject to applicable contracts with the respective data owners.

11. Intellectual Property

Unless otherwise agreed by contract, all software, databases, documentation, trademarks, source code, APIs and related intellectual property developed by or for the Company shall belong to the Company.

12. Electronic Services

The Company may provide services through:

- websites
- mobile applications

- APIs
 - cloud platforms
 - desktop software
 - embedded devices
 - future digital communication technologies
-

13. Dividends

Dividends may be declared by the Company in accordance with the Companies Act.

14. Accounts

Proper books of accounts shall be maintained.

The financial year shall end on:

<FINANCIAL_YEAR_END>

15. Audit

The Company's accounts shall be audited in accordance with applicable laws.

16. Notices

Notices may be served personally, by registered mail, courier, or electronically where permitted by law.

17. Indemnity

Subject to law, every director and officer of the Company shall be indemnified against liabilities incurred in the lawful execution of their duties.

18. Winding Up

Upon winding up, the assets remaining after satisfaction of liabilities shall be distributed among the shareholders according to their shareholdings unless otherwise required by law.

19. General

Matters not expressly provided for in these Articles shall be governed by the Companies Act, 1994 and other applicable laws of Bangladesh.